

VA.5 Forms & Documents Index

Every document a Virginia owner-builder meets — what each one is, when it is needed, and which office it comes from.

Before you use this document

This is a process reference, not legal advice. Virginia has one statewide building code, but every county, city, and town enforces it through its own local building department, with its own forms, fees, and portal. Confirm every item with the building department that will issue your permit before you rely on it. Form names and numbers are local wherever noted; the obligations behind them are not.

Documents a Virginia owner-builder will encounter

Document	What it is and when you need it	Where it comes from
Building permit application	The main application. There is no statewide form — every locality issues its own USBC application, and the owner may file it personally (USBC § 108.1). When: after zoning, septic, and erosion control are lined up. Find it by searching "[your locality] building permit application" on the locality's .gov site.	Your locality's building department or permit portal
Owner exemption statement / affidavit	The written statement, supported by an affidavit, that you are not subject to contractor licensure — the official may not issue the permit without it (§ 54.1-1111). A local form, often titled "Contractor's License Exemption" or "Owner's Affidavit"; names vary. When: at application. Expect to notarize.	Building department form; notary usually required
Mechanics' lien agent designation	Not a separate state form — a field on the permit application (§ 36-98.01). At your request the permit carries the agent's name, address and phone; otherwise it must say "None Designated." The agent must be a Virginia attorney, title insurance company, or deposit-taking financial institution (§ 43-1). Designating one forces lien claimants to 30-day notice (§ 43-4.01) — the notices are their problem, not yours. When: line up the agent before you file.	Your closing attorney or title company agrees to serve; you name them on the application
VDH sewage system / water supply application	The VDH uniform application — "Commonwealth of Virginia Application for: Sewage System / Water Supply" — used for septic and private wells. Cited here by title: no stable form number is printed on it, and district offices bundle it into local packages. When: first — before you buy the lot if you still can.	Local health department (VDH), in person or via the local package

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OSE / PE evaluation and design package	The private-sector alternative: a site evaluation and system design by a licensed onsite soil evaluator, or a PE consulting one, which VDH must accept — and act on within 15 working days for a single lot, or the design is deemed approved (§ 32.1-163.5). When: whenever the health department's own timeline threatens your critical path.	A licensed OSE or PE you hire; submitted to the local health department
Septic construction permit + operation permit	The written permit that must exist before any septic construction (12VAC5-610-240). The construction permit is null and void after 18 months (12VAC5-610-300(A)); the operation permit follows installation and final inspection and is what lets the system be used (12VAC5-610-340).	Local health department (VDH)
Private well construction permit + inspection statement	A written VDH construction permit is required before drilling, altering, or deepening a private well (12VAC5-630-220(B)); you or your agent apply at the local health department, and VDH issues an inspection statement on completion (12VAC5-630-330). Ask the health department about water sampling for the new well — this kit prints no sampling promise.	Local health department (VDH)
Agreement in lieu of a plan (erosion / stormwater)	The single-family shortcut: a contract with the local VESMP authority that replaces the engineered erosion/stormwater plan for a detached house under one acre of disturbance (§ 62.1-44.15:24; 9VAC25-875-530(B)). Each locality maintains its own form — there is no statewide template. When: before any land-disturbing activity; the land-disturbance approval gates all sitework.	The locality's erosion/stormwater (VESMP) office
VDOT land use permit — LUP-A + LUP-PE	The entrance permit for a driveway onto a state-maintained road: form LUP-A ("Land use permit application") with schedule LUP-PE ("Private entrance installation," rev. 3-2024); surety, where required, rides on LUP-SB / LUP-CSB / LUP-LC. When: before constructing any entrance in the right-of-way (24VAC30-73-60(A)). Online filing is available.	VDOT district office for your locality — vdot.virginia.gov → Land Use Permits
Energy test reports — blower door and ducts	The blower-door result (mandatory, 5 ACH50 in Zone 4, run by one of the seven permitted tester categories) and the duct-leakage report — <i>"a written report of the results of the test shall be signed by the party conducting the test and provided to the code official"</i> (13VAC5-63-264). When: at final — but book the testers months earlier. See VA.2, section E.	Your hired tester; delivered to the building department

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Certificate of occupancy / temporary CO	Required before occupancy (USBC § 116.1); a temporary CO may issue on request for a safely occupiable portion before all work completes (§ 116.1.1). If you sell, the CO must exist before conveying to the buyer , absent a written waiver — a Class 1 misdemeanor otherwise (§ 54.1-1101(B)).	Building department, at the end

Sources (verified August 2026; Code of Virginia and VAC at law.lis.virginia.gov): owner may file the application — USBC § 108.1. Exemption statement + affidavit — § 54.1-1111; the form is local, so ask for it by function. Lien agent line, eligible agents, and the 30-day notice effect — § 36-98.01; § 43-1; § 43-4.01. VDH uniform sewage/water application — verified by title; no stable form number exists, so this index prints none. OSE/PE acceptance and the 15-working-day deemed-approval clock — § 32.1-163.5. Septic construction permit, its 18-month life, and the operation permit — 12VAC5-610-240, -300(A), -340. Well permit and inspection statement — 12VAC5-630-220(B), -330. Agreement in lieu of a plan — § 62.1-44.15:24; 9VAC25-875-530(B); each locality's own form. VDOT form titles LUP-A, LUP-PE (rev. 3-2024) and the surety forms — vdot.virginia.gov, Land Use Permits. Energy test reports — 13VAC5-63-264. CO, temporary CO, and the CO-before-sale duty — USBC § 116.1, § 116.1.1; § 54.1-1101(B).